



File No: EXP202104928

RESOLUTION No: R/00321/2022

Considering the complaint filed on October 13, 2021, with this Agency by Mr. A.A.A. (hereinafter, the complainant) against the MINISTRY OF TERRITORIAL POLICY (hereinafter, the respondent) for not having duly addressed his right to erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 13, 2021, this Agency received the aforementioned complaint. It indicates that on September 2, 2021, the complainant requested the Government Subdelegation in Lugo to erase his data from the sanctions file, without his request having received the legally established response.

The complainant provides various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission for processing of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors of the data, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month, with no response recorded in this Agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on January 13, 2022, in accordance with Article 65.5 of said law, the complaint was admitted for processing, and in accordance with the effects provided for in Article 64.1 of the LOPDGDD, since the complaint concerns the lack of attention to a request for the exercise of rights, the parties were informed that the maximum period to resolve this procedure would be six months, starting from the date on which the admission agreement was notified.

With the admission for processing, the respondent agency was granted a hearing period, so that within ten working days it could present what it deemed appropriate, indicating, in summary, that the complainant has requested on several occasions his right to erasure of his data in the automated file of administrative sanctions.

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In reference to the exercise subject to this procedure, they provide a copy of the letter sent to you on October 1, 2021, in which they inform you that the files processed in your name in 2008 are included in the "administrative sanctions" file for which the Government Subdelegation in Lugo is responsible and that they are declared in the Registry of Activities and Treatment (RAT) of that Secretary of State.

"The situation has not changed in relation to our response dated 12/09/19, regarding a request submitted by you, in the same terms, with no new files processed since then."

"(...) it is necessary to take into account that the automated file of administrative sanctions is the tool used by the Delegations and Subdelegations of the Government to process, instruct, and resolve the sanctioning files assigned to them, and as already pointed out, this file is declared in the Registry of Activities of Treatment (RAT) of this Secretary of State, where it is detailed what the legal basis is, the purposes, and the deletion deadlines. This file has among its purposes the initiation and processing of sanctioning files and in no case is it a record of sanctioning backgrounds, nor a record of offenders. Furthermore, given its nature, it is also not a voluntary register in which the subject of the file can decide on their inclusion, and its operation derives from the exercise of public powers conferred to the data controller."

"(...) there is specific legislation that obliges the Administration to retain the documentation

corresponding to the files processed in the exercise of its competencies, which prevents the deletion of the data corresponding to the administrative files in which the processing of the files in question is recorded. Specifically, Article 49.2 of Law 16/1985, on the Spanish Historical Heritage, considers as documentary heritage the documents of any era generated, preserved, or gathered in the exercise of their function by any public body or entity, by legal persons in which the State or other public entities hold a majority stake, and by private individuals, whether natural or legal, managing public services in relation to the management of such services," establishing specific regulations regarding the conservation and consultation regime of the documents contained in said Documentary Heritage. Therefore, considering that we are not dealing with a record of sanctioning backgrounds and that it is merely a file of administrative files, (...) it is appropriate to deny the requested cancellation."

FOURTH: After examining the statements presented by the respondent, they are to be forwarded to the claimant, so that, within fifteen working days, they may formulate what they deem appropriate. The claimant requests that the resolution issued by the Director of the Agency in file TD/00548/2015, instructed as a consequence, be taken into consideration.

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of its exercise of suppression, in which "(...) it was determined that they should be eliminated."

It also indicates that it has not received the response to its exercise provided by the responding party.

FIFTH: Granted a hearing to the responsible party, he states that he sent the response to the address that the interested party indicated in his writing. However, upon seeing that in the hearing process he has indicated a different address, it is possible that he did not receive said response.

"This Subdelegation of the Government reaffirms what is stated in the writing dated 01/10/21. The file in which the data of Mr. A.A.A. is recorded has among its purposes the initiation and processing of sanctioning files and is in no case a record of sanctioning backgrounds, nor a record of offenders. Furthermore, given its nature, it is also not a voluntary register in which the sanctioned party can decide on their inclusion, and its operation derives from the exercise of public powers conferred on the data controller. Therefore, the data of Mr. A.A.A. is not available to third parties. Only officials related to sanctioning administrative tasks can access said data, and, of course, the interested party himself duly accredited, for example, through his digital certificate or electronic ID, via electronic administration mechanisms."

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of section 2 of article 56 in relation to section 1 f) of article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in article 47 of the LOPDGDD.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with the provisions of article 23.2.b) of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, to the extent that the assumption provided for in said provision applies in this case, the director of the Spanish Agency for Data Protection has agreed to refrain from intervening in the proceedings that, within her competence, she is to develop as director of the Agency in the present procedure.

In accordance with the provisions of article 48.2 of the LOPDGDD, in cases of absence, vacancy, or illness of the person holding the Presidency or when

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if any of the grounds for abstention or recusal provided for in Article 23 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, are present, the exercise of the competencies related to the procedures regulated by Title VIII of this organic law shall be assumed by the head of the governing body that performs inspection functions.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Likewise, the internal legal framework, in Article 65.4 of the LOPDGDD, has provided a mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection, which consists of forwarding them to the data protection officers designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not designated any, so that they can analyze these complaints and respond to them within a month.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within a month, and to prove that it had provided the due response to the complainant, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for the satisfaction of the claims of the complainant party. Consequently, on January 13, 2022, for the purposes provided in Article 64.2 of the LOPDGDD, and in accordance with Article 65.5 of that law, since the complaint concerned the lack of attention to a request for the exercise of rights, the procedure is understood to have commenced from the date on which three months had elapsed since the complaint was received by the Agency, whereby it was agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.”

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement for processing. After this period, the interested party may consider their claim accepted.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Furthermore, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge

(without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to state its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

“1. The interested party shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the interested party withdraws consent on which the processing is based according to Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this is not based on another legal ground;
- c) the interested party objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the interested party objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;

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e) personal data must be erased for the fulfillment of a legal obligation established in Union or Member State law applicable to the data controller;

f) personal data has been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for the erasure of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 could make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the formulation, exercise, or defense of claims.”

FIFTH: In the case analyzed here, from the examination of the documentation provided by the parties, it has been established that the claimant requested the erasure of their data.

Although the respondent initially indicated that they had not responded to the right, the respondent states that they sent the response again to the address that the claimant indicated in their submission for the hearing, upon noticing that it differed from the one indicated in the request submitted to the respondent.

Regarding the substance of the matter, the Judgment of the Constitutional Court 292/2000, of November 30, expressly states: “The right to data protection grants its holder a bundle of powers

consisting of various legal powers whose exercise imposes legal duties on third parties, which are not contained in the fundamental right to privacy, and which serve the essential function performed by this fundamental right: to guarantee the person a power of control over their personal data, which is only possible and effective by imposing on third parties the aforementioned duties to act. Namely: the right to require prior consent for the collection and use of personal data, the right to know and be informed about the destination and use of such data, and the right to access, rectify, and cancel such data. In short, the power of disposal over personal data.”

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Adding the aforementioned Judgment, which states that “in relation to the fundamental right to privacy, we have highlighted not only the necessity for any possible limitations to be grounded in a legal provision that has constitutional justification and that they be proportionate, but also that the law restricting this right must precisely express each and every one of the material prerequisites of the limiting measure. Otherwise, it is difficult to understand that the judicial resolution or the administrative act applying it is based on the law, since what it has done, by neglecting its functions, is empower other Public Powers to set the limits to the fundamental right.

Similarly, regarding the right to the protection of personal data, it must be considered that the constitutional legitimacy of the restriction of this right cannot be based solely on the activity of the Public Administration. Nor is it sufficient for the law to empower it to specify the limits in each case, merely indicating that it must make such specification when any constitutionally protected right or good is present. It is the legislator who must determine when that good or right justifying the restriction of the right to the protection of personal data is present and under what circumstances it may be limited; furthermore, it is he who must do so through precise rules that make the imposition of such limitation and its consequences foreseeable for the interested party...

The use in Article 24.2 of the LOPD of the expression “public interest” as a basis for imposing limits on the fundamental rights of Article 18.1 and 4 of the CE entails an even greater degree of uncertainty. It is sufficient to note that all administrative activity ultimately pursues the safeguarding of general interests, the achievement of which constitutes the objective that the Administration must serve objectively in accordance with Article 103.1 of the CE... Paragraph 2 of Article 24 of the LOPD establishes that the rights of access to data (Articles 15.1 and 2 of the LOPD) and the rights of rectification and cancellation of the same (Article 16.1 of the LOPD) may also be denied if, “weighing the interests at stake, it results that the rights granted to the affected party by these provisions must yield to... interests of third parties more worthy of protection.” It is evident that, in light of what has been said, given that this clause allows the data controller to deny an interested party access, rectification, and cancellation of their personal data, and regardless of whether those interests can be identified with the fundamental rights of that third party or with any other interest that may be asserted, such a denial entails leaving to the administrative decision the setting of a limit to the fundamental right to the protection of personal data without even establishing what those interests may be or the circumstances under which they may be invoked to restrict this fundamental right in such a manner.” Now, it can be observed that in the response that the respondent directed to the claimant at the time, Royal Decree 1720/2007, of December 21, is mentioned:

“With regard to the deletion period, it is necessary to consider, in accordance with the provisions of Article 33.1 of the Regulation that develops Organic Law 15/1999, of December 13, on the Protection of Personal Data (approved by Royal Decree 1720/2007, of December 21) that ‘cancellation shall not proceed when personal data must be retained for the periods...’

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provided for in the applicable provisions or, where appropriate, in the contractual relationships between the person or entity responsible for the processing and the data subject that justified the processing of the data."

It should be noted that the cancellation system established in Royal Decree 1720/2007, of December 21, does not correspond exactly with the provisions of the right to erasure in Article 17 of the GDPR nor, where applicable, with the blocking of data in Article 32 of the LOPDGDD. Therefore, the request for protection must be granted, and the denial response must be justified in relation to the current regulations, in the event that it is considered that the erasure of the claimant's data existing in the automated file of administrative sanctions is not legally appropriate.

Consequently, the request for protection must be granted, and, in the event that it is considered that the erasure of the claimant's data existing in the automated file of administrative sanctions is not legally appropriate, a reasoned explanation for the denial must be provided.

In view of the cited provisions and other generally applicable regulations, the Deputy Director General of Data Inspection of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the complaint filed by Mr. A.A.A. and to urge the MINISTRY OF TERRITORIAL POLICY with NIF S2833002E, to send to the complaining party, within ten working days following the notification of this resolution, a certification stating that it has addressed the requested right to erasure or that it denies it with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to the MINISTRY OF TERRITORIAL POLICY.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection
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Olga Pérez Sanjuán

(P.S. Deputy Director General of Data Inspection)

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